



Safeguarding the Right to Free and Fair Elections in the Age of Automation:

A Critical Look at The Implications of Atty. Respicio's Case

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Introduction

The 1987 Philippine Constitution enshrines the right of suffrage in Article V, Section 1, affirming that “Suffrage may be exercised by all citizens of the Philippines not otherwise disqualified by law, who are at least eighteen years of age...”¹ This fundamental right reflects the democratic principles of popular sovereignty and active citizen participation in governance. To safeguard this right, the Constitution tasks the Commission on Elections (COMELEC) with the duty to conduct free, honest, orderly, and credible elections.²

In pursuit of these goals, the Philippine government enacted the Automated Election Law through Republic Act No. 9369, which amended Republic Act No. 8436.³ This legislation paved the way for modernizing the electoral process by adopting automated election systems designed to enhance transparency, reduce human error, and deter electoral fraud. While these technological advancements were intended to bolster the credibility of elections, they have also introduced complex legal and ethical challenges.

Crucially, electoral laws must be harmonized with other constitutional guarantees such as due process, equal protection, and freedom of expression.

These rights become especially significant when automated systems are alleged to malfunction or fail in faithfully capturing the will of the electorate. Whether real or perceived, such failures risk undermining public confidence, disenfranchising voters, and distorting the outcome of democratic processes.

The Case of Atty. Jeryll Harold Respicio

The 2025 case of Atty. Jeryll Harold Respicio, a lawyer and certified public accountant who ran for vice mayor of Reina Mercedes, Isabela, became a flashpoint in discussions about the constitutional implications of election automation. After winning the election with a clear margin, Respicio released a

¹ CONST. (1987), art. V, § 1 (Phil.).

² Id. art. IX-C, § 2.

³ Republic Act No. 9369, § 2 (2007) (Phil.).



series of videos on social media in which he claimed that the automated vote-counting system could be manipulated through a method he described as “backroom programming.”⁴ The videos gained national attention, prompting the Commission on Elections (COMELEC) to file cyber libel and false news complaints against him, invoking Article 154 of the Revised Penal Code⁵ in relation to Section 6 of the Cybercrime Prevention Act.⁶

In response, COMELEC suspended Respicio’s proclamation despite the absence of any discrepancies in the actual vote count.⁷ This act raised serious constitutional questions about the limits of free speech, particularly when it intersects with criticisms of electoral procedures. Respicio defended his statements as a form of whistleblowing aimed at promoting transparency, arguing that exposing potential vulnerabilities in the automated system should fall under constitutionally protected speech. He further emphasized that his claims did not seek to delegitimize the election result but rather to encourage public scrutiny of the technology behind it.

COMELEC countered that while criticism is welcome, the spread of what it deemed unverified and potentially misleading information could erode public trust in electoral institutions. However, observers noted that the Commission’s reaction, particularly the preemptive suspension of an already elected official, could be seen as a disproportionate response that compromised due process. The case eventually concluded with the lifting of the suspension and Respicio’s official proclamation, yet it left unanswered the broader legal question: how should the state respond when concerns about electoral automation are raised⁸ in good faith by candidates or citizens?

The Respicio controversy exemplifies the fine line between regulating misinformation and preserving democratic freedoms in an era where elections are increasingly mediated by technology. It also underscores the need for clearer legal frameworks that provide space for legitimate inquiry into electoral systems without punishing those who raise uncomfortable, but potentially valid concerns.

⁴ R. Villanueva, Lawyer Who Claimed Vote-Counting System Can Be Hacked Wins Isabela Race—But Proclamation Suspended, INQUIRER.NET (May 13, 2025), <https://newsinfo.inquirer.net/>.

⁵ REV. PEN. CODE art. 154.

⁶ Cybercrime Prevention Act of 2012, Republic Act No. 10175, § 6 (2012).

⁷ Villanueva, *supra* note 4.

⁸ COMM’N ON ELECTIONS, First Division, In re: Disqualification of Jeryll Respicio, Election Case No. 25-109 (2025).



Evolution and Challenges of Election Automation in the Philippines

I. Historical Background and Transition to Automation

Before 2010, elections in the Philippines were conducted manually. This traditional method involved hand-counting votes, physical transmission of election returns, and prolonged canvassing that often lasted several weeks. While theoretically transparent, manual elections were highly vulnerable to human error, vote padding and shaving (“dagdag-bawas”), ballot switching, and outright fraud. These systemic weaknesses contributed to widespread electoral disputes, public dissatisfaction, and, at times, civil unrest.

To address these long-standing issues, the Philippine Congress enacted Republic Act No. 8436 in 1997, authorizing the Commission on Elections (COMELEC) to use automated election systems (AES)⁹ in the interest of ensuring free, orderly, honest, peaceful, and credible elections. However, it was only in 2007, through Republic Act No. 9369, that the AES law was fully amended to include provisions for transparency, accuracy, security, and auditability. This paved the way for the nationwide implementation of automated elections in the 2010 national and local polls, a landmark shift in the country’s democratic process.

II. Implementing Automation: Elections from 2010 to 2022

The 2010 elections used Precinct Count Optical Scan (PCOS) machines. Subsequent elections in 2013, 2016, 2019, and 2022 continued this trend, upgrading to Vote Counting Machines (VCMs) to address earlier technical issues.¹⁰ Despite these enhancements, each election cycle has exposed persistent challenges.

III. Challenges in Election Automation

a. Transparency and the “Black Box” Dilemma

One of the most pressing issues is the opaque nature of the technology used. While automated elections have curtailed manual cheating tactics, they have also made the process less understandable to the average voter. Most

⁹ Republic Act No. 9369, § 2 (2007).

¹⁰ COMELEC, General Instructions for the Board of Election Inspectors on the Testing and Sealing of Vote Counting Machines, Res. No. 10057 (2016).



citizens and even many poll officials do not fully comprehend how the machines work. This “black box” dilemma creates suspicion¹¹ especially in areas where anomalies are reported.

Although COMELEC is required to make the source code of the software available for review, concerns have been raised about the timing, length, and inclusiveness of these reviews. Civil society groups have repeatedly called for broader participation in technical validation processes, emphasizing that transparency must not only be a procedural formality but a substantive and verifiable practice.

b. Technical Failures and System Vulnerabilities

Technical malfunctions have also plagued the credibility of automated elections. Problems such as paper jams, voting machine shutdowns, transmission failures, and corrupted SD cards have been reported in each election cycle. In the 2019 elections, more than 1,000 VCMs were reported to have malfunctioned nationwide, raising fears that such glitches could distort outcomes in close races.

These technical flaws not only affect operational efficiency but can also disenfranchise voters if issues are not resolved immediately at the precinct level. Additionally, because the technology is proprietary and controlled by third-party contractors, there are concerns about accountability when breakdowns occur.

c. Security and Cyberthreats

While there has been no confirmed large-scale hacking of Philippine elections, the possibility of system intrusion remains a significant concern. With the increasing sophistication of cyberattacks globally, COMELEC must ensure that the AES infrastructure is resilient to internal and external threats. Concerns about system integrity, hash code verification, and vote transmission vulnerabilities underscore the importance of end-to-end encryption, independent auditing, and cybersecurity protocols.

¹¹ CTR. FOR PEOPLE EMPOWERMENT IN GOVERNANCE, SOURCE CODE REVIEW REPORT ON AES 2016 (2016).



The infamous 2016 COMELEC data breach, widely referred to as “Comeleak”, exposed sensitive voter information and severely damaged the Commission's credibility. Although this breach was unrelated to the AES itself, it demonstrated the overall fragility of election-related digital infrastructure.

d. Voter Education and Digital Literacy

Another persistent challenge is the general lack of voter education regarding automated elections. Many Filipinos are unfamiliar with how their votes are processed, verified, and transmitted. Misunderstandings about machine function, ballot shading, and vote confirmation have led to confusion and, in some cases, claims of fraud.

This gap in public understanding fuels distrust, especially in a climate where misinformation can spread rapidly through social media. Enhancing public digital literacy and providing hands-on voter education programs at the grassroots level is essential to fostering confidence in the automated system.

e. Legal Framework and Oversight

The legal framework for AES is largely contained in RA 9369, but critics argue that it has not kept pace with the rapid evolution of election technology. There is a need for more detailed provisions on public audit procedures, whistleblower protections, contractor accountability, and dispute resolution specific to automated elections.¹²

Moreover, while the COMELEC has constitutional independence, its decisions are often subject to questions of impartiality and political influence. Strengthening oversight mechanisms, such as empowering independent technical panels and enhancing the role of election watchdogs, could help mitigate this perception.

Conclusion

The automation of elections in the Philippines was envisioned as a solution to the inefficiencies and vulnerabilities that plagued manual electoral processes. Since its nationwide implementation in 2010, the shift to automated systems has indeed yielded important benefits: faster canvassing, minimized

¹² TRANSPARENCY INTERNATIONAL, ELECTIONS AND TECHNOLOGY: TOWARD A PEOPLE-CENTERED APPROACH (2023).



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human error, and improved logistical efficiency. Yet, as this paper has shown, the promise of automation has been accompanied by significant challenges, particularly those related to system transparency, voter education, technological vulnerabilities, and legal oversight.

The case of Atty. Jeryll Harold Respicio adds a human and constitutional dimension to these concerns. His experience illustrates how state institutions, when faced with criticism of electoral systems, must tread carefully between preserving electoral integrity and protecting the fundamental rights of individuals, especially those related to free expression, due process, and the electoral mandate. The swift suspension of his proclamation, absent concrete proof of fraud, risked chilling public discourse and raised valid fears about the misuse of penal laws in electoral contexts.

Ultimately, the Philippine experience underscores that election automation is not merely a technical reform; it is a constitutional challenge. The credibility of an election does not rest on machine accuracy alone, but on the public's confidence that the process is transparent, accountable, and accessible to all citizens. Legal and institutional reforms must accompany technological upgrades. Source code reviews must be made meaningful. Independent audits must be regular and participatory. Voter education must be proactive and sustained. And perhaps most importantly, criticism of public systems, no matter how uncomfortable, must be protected as a cornerstone of democracy, not suppressed as a threat.

Only by adopting a holistic approach that merges legal protections, technological rigor, and civic empowerment can the Philippines ensure that automation strengthens, rather than weakens, the people's constitutional right to free and fair elections.



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